INTERNET FREEDOM IN MOLDOVA

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OVERVIEW

Moldova's internet is relatively free, though the government has imposed some limitations in recent years, particularly during states of emergency. Internet access has increased, but penetration rates remain lower than other countries in the region. The Moldovan government blocks certain news websites that allegedly disseminate fake news. Russian actors have facilitated the spread of disinformation on messaging applications and social media platforms. Additionally, the government, oligarchs, and other powerful figures have reportedly surveilled politicians, civil society actors, and businesspeople. Cyberattacks on both state entities and media outlets remain a significant issue. The government recently adopted a cybersecurity legislative package to combat these problems.

METHODOLOGY NOTE

This report assesses internet freedom in Moldova using a modified version of the publicly available *Freedom on the Net 2024* methodology (see Appendix A). Because this report is distinct from *Freedom on the Net*, there are no scores associated with this report. Additionally, the alphabetized and numerical indicators in the *Freedom on the Net* methodology have been converted to topical subheadings.

In line with Freedom House's *Freedom in the World* report, this report does not reflect conditions in Transnistria. *Freedom in the World* sometimes assesses disputed territories separately if they meet certain criteria, including boundaries that are sufficiently stable to allow year-on-year comparisons.

I. INTERNET ACCESS, COST, AND EQUITY

I.1 Internet Access

The reliability and speed of Moldova's internet connections have generally improved. Moldova has fairly extensive internet coverage due to the country's compact size and highly concentrated population.[1]

According to 2022 data from the International Telecommunications Union, 63.5 percent of Moldovans use the internet, both on fixed or mobile networks.[2] Moldova's fixed internet service penetration rate was 33.5 percent for individuals, and 69.7 percent for households, on par with other European countries, per data from the National Regulatory Agency for Electronic Communications and Information Technology (ANRCETI).[3] Urban areas have greater access to the internet than rural locations.[4] For more information on ANRCETI's role and responsibilities, see *Oversight* below.

Mobile internet usage continues to grow in Moldova. ANRCETI's 2023 report estimates that 72.5 percent of Moldovans use mobile internet, with its penetration rate reaching 115 percent.[5] Although mobile internet connections are more accessible, they are slower and of lower quality than fixed-line internet connections. According to May 2024 data from the Speedtest Global Index, Moldova has a median mobile internet connection speed of 34.47 Mbps, and a fixed broadband speed of 128.39 Mbps.[6] Moldova implemented 3G networks in 2007 and 4G in 2014, but the move to 5G has been postponed from 2022 to 2024 by ANRCETI, due to Moldova's economic crisis and low levels of 5G-compatible mobile phones.[7] At the same time, ANRCETI has initiated the preparatory process to issue licenses for the use of frequency bands necessary to develop 5G networks, which may take place in late 2024.[8]

The development of fiber optic networks in Moldova is facilitating widespread migration to faster connections with speeds of 100 Mbps and above. According to ANRCETI's 2023 data, 51.8 percent of fixed internet subscribers enjoy such speeds.[9]

The national operator Moldtelecom held a monopoly on accessing international content until 2010, when other operators gained access to Moldtelecom's network and received licenses to create their own gateways.[10] After Moldtelecom provided operators with gateways to the global internet in 2010, several providers subsequently built their own international fiber connections, reducing service costs and increasing competitiveness.[11]

Moldova's Digital Transformation Strategy of 2023-2030,[12] approved in September 2023, aims to promote sustainable development, build a digital society, and bolster the ICT sector.[13]

I.2 Cost and Equity

There are no significant barriers to internet access in Moldova, though low-income households have trouble accessing higher-speed internet.[14]

According to 2023 data from the UK-based company Cable, Moldova has the cheapest mobile internet among Eastern European countries.[15] Based on ITU data from 2022, a fixed-broadband internet basket of at least 5 GB costs 1.99 percent of gross national income (GNI) per capita.[16] However, many low-income households still cannot afford high-speed fixed or mobile connections.

Since the beginning of 2024, roaming services in 30 EU and European Economic Area countries have become more accessible to Moldovan citizens, as all mobile operators have launched offers with significantly reduced tariffs.[17] Moldova and the EU agreed to roaming liberalization in 2023,[18] and the European Commission accepted a proposal to include roaming in the Association Agreement between the EU and Moldova.[19] In February 2022, Moldova and Romania signed a bilateral agreement liberalizing roaming tariffs.[20] The report of the national regulatory agencies of the two countries showed a significant increase in roaming internet traffic in 2022.[21] According to the report, the cost of the average roaming basket has fallen by almost 70 percent for users in Moldova.

Though there is no major gender gap among Moldovans who regularly use the internet, there are differences in terms of age, geographic location and income level, and those between the ages of 25–34 years make up a quarter of the country's internet users.[22]

Of the active internet audience in Moldova, 60 percent of users live in urban areas, and Moldova's capitol, Chișinău, accounts for 34 percent of all Moldova's internet audience. Insufficient development of fixed access infrastructure can be an issue for rural communities. As of 2024, about 370 villages in the country do not have the technical ability to connect to optical internet.[23]

I.3 Internet Disruptions, Shutdowns, and Backbone Centralization

Internet shutdowns and the blocking of social media networks are not common in Moldova.

In April 2009, Moldova saw large-scale protests—known internationally as the "Twitter Revolution"—to reject the results of parliamentary elections.[24] At the height of the demonstrations, several major internet providers, including the national operator Moldtelecom, cut off users' access to the network. Access to some popular social platforms was prohibited for several days, and several web-portals were also temporarily blocked.[25] Service providers cited technical problems and network congestion, denying they had received any orders from the government.

In general, Moldova's regulatory framework does not provide for any restrictions on connection. However, in accordance with the Law on Electronic Communications, ANRCETI is granted broader powers "to meet the needs of the state—defense and national security, ensure public order, prevent emergency situations and eliminate their consequences in the event of irreparable interference."[26] The introduction of special rules for the use of communication means is also allowed as one of the measures taken during a state of emergency.[27] *See "Suspensions under States of Emergency" below.*

II. TELECOMMUNICATIONS AND INTERNET SERVICE PROVIDER (ISP) MARKET AND OVERSIGHT

II.1 Market for Telecommunications and Internet Service Providers

The telecommunications sector in Moldova has been liberalized. There are few regulatory or legal barriers that limit the diversity of service providers, but market concentration does inhibit competition. There are 110 fixed internet service providers, three of which also provide mobile internet services.[28]

Moldtelecom, the national operator, holds more than 50 percent of the broadband internet market.[29] The government plans to reorganize Moldtelecom after encountering privatization issues due to lower-than-expected offer prices.[30] Moldtelecom has also faced corruption scandals in recent years.[31] Based on a 2020-2022 audit, Moldova's Court of Accounts concluded that Moldtelecom has been ineffectively managed, with several violations in property management and signs of fraud in contracts.[32]

According to 2023 data from ANRCETI, the telecom sector contributes to 2.1 percent of Moldova's GDP.[33] Approximately 77.2 percent of total revenues collectively belongs to the companies Orange Moldova (35.4 percent), Moldtelecom (26.2 percent) and Moldcell (15.6 percent). Orange Moldova owns around half of the mobile telephone market, followed by Moldcell (34 percent) and Moldtelecom (16 percent). In 2023, Orange Moldova's earnings from providing fixed internet services grew due to its takeover of Sun Communications.[34] Moldova's Competition Council approved the transaction, determining the acquisition did not pose significant obstacles to effective market competition.[35]

There are no significant restrictions on entering Moldova's telecom and information technology market. Telecommunications companies must obtain permission from ANRCETI before offering services, although the process is relatively simple. Service providers are also required to take measures that facilitate government oversight to prevent and combat cybercrime, which poses a cost.[36]

Moldova's legislative framework in this field is largely harmonized with EU law. The Law of Electronic Communications, in force since 2017, provides the overall framework for the country's provision of telecommunication services and contains a number of EU directives covering the sector, including competition and market regulation.[37] The Law Regarding Access to Ownership and Sharing of Infrastructure Associated with Public Electronic Communications Networks, implemented in 2016,[38] regulates service providers' access to infrastructure and stimulates the development of competition.[39]

The Law on Information Society Services[40] (until 2023, called the Law on Electronic Commerce) establishes the principles of regulation and conditions for the provision of information society services, the responsibilities of service providers and intermediaries, as well as the principle of supporting cooperation between the Republic of Moldova and other countries in the process of providing information society services. The Law applies to service providers registered and/or established in Moldova, service providers whose activity is directed to Moldova, as well as to the services they provide, including internet access or permanent storage of information services.

For information regarding the 2023 Laws on Cybersecurity and the Center for Strategic Communication and Countering Disinformation, please see *Cybersecurity* and *Disinformation and Manipulation of the Online Environment* below respectively.

II.2 Oversight

The Law on Electronic Communications governs Moldova's internet and telecommunications, and it appoints ANRCETI as the sector's regulator.[41] ANRCETI ensures the implementation of development strategies for relevant industries, protects the rights and interests of end users, and monitors compliance with the law. ANRCETI also regulates the management of the top-level domain in Moldova (.md) in accordance with internet regulations and decisions.[42]

ANRCETI's activities must be independent from providers, telecom equipment manufacturers, and the government, though the government does have the ability to appoint ANRCETI's leadership for four-year terms and sets term limits to eight years.[43] Directors may be dismissed from their positions due to systematic and improper performance of their duties. ANRCETI must submit an annual financial report to the government.

ANRCETI operates relatively transparently. The Administrative Council, consisting of the director of ANRCETI and two deputy directors, is responsible for managing the agency All decisions that influence the relevant market and supply of public services are subject to public hearings. ANRCETI's website publishes draft acts as well as information about public meetings.

Moldova's Ministry of Economic Development and Digitalization is charged with optimizing the regulatory framework in information technology, creating preconditions for technological development, promoting demonopolization of the domestic market and eliminating anti-competitive practices. The ministry is responsible for regulating information technology and the digital economy, electronic and postal communications, infrastructure and market surveillance, and consumer protection policies.[44]

In January 2025, a new Law on Cyber Security will come into force in Moldova, establishing the Agency for Cybersecurity, which will be responsible for the protection of critical information infrastructure, identification and accounting of service providers, implementation of a mandatory mechanism for reporting cyber incidents, as well as for supervision and state control of service providers' compliance with the cybersecurity regulatory framework (*see also "Cybersecurity"*).[45]

III. BLOCKING AND CONTENT REMOVAL

III.1 Website Blocking

The Moldovan government sometimes orders the blocking of websites.

In recent years, orders to block websites have been issued by decisions of the Commission for Emergency Situations (CSE), which operates under the Law on the State of Emergency, Siege and Martial Law.[46] The CSE has the right to instruct intelligence services and other government bodies to apply special rules to the use of communications and take certain measures to control and monitor the information space, including determining whether an online source is engaging in "information warfare" against the state.[47]

The blocking of online resources continued, in October 2024 SIS ordered the blocking of, among others, the Yandex and RuTube platforms (Yandex subsequently moved its services to yandex.md, a domain owned by the Russian company since 2003).[48]

Moldova declared a state of emergency on February 24, 2022, when Russia began its full-scale invasion of Ukraine.[49] The state of emergency and ANRCETI, with input from the Security and Intelligence Services (SIS), obliged internet providers to block websites disseminating allegedly fake news that impacted Moldovan national security, as well as those inciting hatred and violence.[50] In March 2023, the SIS announced that it had requested the blocking of five websites publishing "false information in areas affecting national security," referring to clones of Sputnik, a Russian state-owned news agency.[51]

In October 2023, the CSE released a decision suggesting the introduction of new legal mechanisms for blocking online sources.[52] The CSE determined that further websites, beyond those potentially affecting national security, could also be blocked if they feature "online resources that are used in the information war against the state." The CSE's decision required providers to immediately block access to the sources specified by ANRCETI and content inciting hatred and violence.

At the request of the SIS, the CSE also suspended the license of twelve television channels (though not their online presence) for allegedly providing a lack of reliable information when covering events affecting national security, such as the war in Ukraine.[53,54] The CSE also cited their ownership by persons or entities subject to international sanctions as further cause for suspension. At the end of May 2024, three more companies lost their broadcast licenses on financing grounds, leaving five more TV channels without licenses—*Primul în Moldova*, Accent TV, *Orizont TV*, *Canal 2* and *Canal 3*. The Council for the Promotion of Investment Projects of National Importance of the Investment Agency determined that the audiovisual media whose activities had been suspended could not resume their work even after the state of emergency is lifted.

III.2 Suspensions under States of Emergency

The state of emergency following Russia's full-scale invasion of Ukraine was lifted at the end of 2023. However, at the SIS's request, ANRCETI ordered that the blocked websites remain inaccessible, given their continued threat to national security.[55] The list of blocked sources is available on the websites of some service providers.[56]

During the COVID-19 global pandemic, from March 2020 to April 2022, Moldova was also under a state of emergency. During this period, authorities blocked online content in a manner that was often perceived as disproportionate and arbitrary. In March 2020, the SIS ordered the blocking of 52 websites that allegedly spread COVID-19-related disinformation, and throughout the pandemic requested several other websites blocked as well.[57] These were not clearly justified by law and drew criticism from media observers.[58,59] In April 2021, the CSE ordered service providers to immediately block online content sources listed by SIS as spreading false news about COVID-19.[60]

Moldova's government continues to block illegal online gambling operators. The Public Services Agency regularly updates the list of unauthorized websites, platforms and applications with gambling, after which ANRCETI sends requests to service

providers to block these web resources. As of 2024, the list included 1,946 resources.[61]

III.3 Civil Society Responds to Blocking

Civil society groups like the Internet Freedom Platform, The Internet Freedom Platform of Eastern and Central Europe and Eurasia, and Reporters Without Borders have voiced concerns about the integrity of these blockings.[62,63] In October 2023, Moldova's Ombudsman also expressed concern about suspending television channels and blocking websites.[64] In January 2024, media and human rights organizations issued a statement condemning a new mechanism for blocking media activities without requisite judicial intervention, the government's decision to continue blocking information and media resources after the state of emergency issued at the beginning of the Russia-Ukraine War had expired, and the lack of transparency in the legislative process.[65] Media outlets have filed lawsuits to appeal the CSE's decision, but they have faced delays and dismissals by trial courts.[66,67]

III.4 Content Removal

Courts in Moldova can issue orders to remove online content, especially in cases concerning the dissemination of false or defamatory information.

The government infrequently issues content removal requests to platforms. According to Google's Transparency Report, since 2011, Moldova's government has issued eleven removal requests for 86 pieces of content.[68] The majority of these requests occurred in 2022. From July 2020 to December 2023, Facebook removed content 91 times in response to government requests, with most occurring between July 2021 and June 2022 and from July–December 2023.[69] Additionally, in recent years, the government has introduced special emergency measures granting authorities greater latitude to ban or remove content.

Moldovan media websites have also faced pressure from Russian government agencies to delete content. The Federal Service for Supervision of Communications, Information Technologies and Mass Communications (Roskomnadzor) has repeatedly tried to influence Moldovan media coverage of Russian military operations in Ukraine. Moldovan publications including tv8.md, *Ziarul de Garda*, and Newsmaker have received demands from Roskomnadzor to remove content deemed as containing "false information" on the war, but their editorial boards refused to comply.[70,71,72]

Regional authorities in Moldova also issue content removal orders. In January 2024, activist Olga Parzany published a video recording of a Supervisory Board meeting of the regional television and radio company *Gagauziya Radio Televizionu* (GRT), which demonstrated elements of censorship experienced by GRT journalists to avoid critical topics.[73] A former GRT website editor had criticized the company's executive director for allegedly requesting the removal of content calling Gagauzian authorities who promised to offer residents low price natural gas false and manipulative. Additionally, the Gagauzia Executive Committee's regularly sends "requests" for the publication of press releases. Moldovan NGOs condemned these activities for illegally interfering with the media's editorial activities and demanded that the GRT be investigated.[74]

III.5 Legal Landscape for Website Blocking and Content Removal

Moldova's legal framework allows filtering of internet content under certain conditions, including child sexual abuse material, material of an extremist or terrorist nature, or material that violates intellectual property rights. Restricting content typically requires judicial approval and can be challenged in court by content owners, who may seek compensation if a judge finds the blocking illegal and unjustified. An appeal is possible both to higher authorities and then to the European Court of Human Rights. During a state of emergency, tighter restrictions can and have been enforced by the government.

Courts issue warrants to authorize the majority of counterintelligence activities, including blocking access to certain electronic communications services, surveillance, and interception of correspondence and wiretapping. However, courts are limited by the 2022-2023 SIS legislative initiatives when issuing permits for special investigative measures. The SIS

director requests a judicial warrant from the Chișinău Court of Appeals, which must review the request within 24 hours. If an appeal to the Supreme Court of Justice is filed, it is considered by a panel of three judges of the Supreme Court of Justice. In exceptional circumstances concerning immediate national security or safety risks, the SIS may act without a court order.[75] In such cases, the judge is informed within 24 hours. A judge can uphold the legality of the SIS's actions or rule them illegal.

Between 2022 and 2023, the Moldovan parliament's agenda included several legislative initiatives related to tightening control of the online environment, citing threats to national security and the need to ensure independence in the activities of intelligence services. These include the new Law on the Information and Security Service,[76] the Law on the Exercise of Counterintelligence and External Intelligence Activities,[77] as well as an adjustment to the Law on the Status of Information and Security Officer,[78] which were adopted in their final readings in 2023. Some measures in the laws mirror controversial draft laws introduced between 2014 and 2018 known as the "Security Mandate" and "Big Brother."[79]

International and national experts have repeatedly criticized these reforms for enabling the SIS to further interfere with citizens' rights and freedoms without providing effective oversight.[80] The Council of Europe's Venice Commission has criticized the draft Law on the Information and Security Service, warning that it grants the SIS overly broad powers with little democratic oversight during emergencies. [81] The Commission also warned that the draft Law's provisions may have a "chilling effect" on the freedom of expression. Pressure from civil society and public consultations prompted Parliament's removal of certain provisions that could harm fundamental human rights and finalized the law. However, experts point out that fragments of the old draft and inappropriate SIS functions remain.[82]

The Law on the Exercise of Counterintelligence and External Intelligence Activities provides for prosecutorial supervision, which is carried out either on the prosecutor's own initiative or on the behalf of a person who believes their rights were violated.[83] The law also establishes parliamentary control of the SIS, charging a subcommittee with the role of initiating investigations or petitioning the attorney general.

In June 2022, Moldova's parliament passed most measures in the information security and combating disinformation bills,[84] but in the form of amendments to the Code on Audiovisual Media Services[85] aimed at countering disinformation. The law introduces the concept of "disinformation" and institutes fines ranging from 40,000 to 100,000 lei for TV channels and radio stations disseminating false information aiming to harm a person, group, or state security. Under the law, the state can also suspend a broadcasting license for up to seven days, subject to the prior imposition of fines. In September 2023, the Audiovisual Council adopted methodological standards aimed at identifying and assessing cases of disinformation.[86] In April 2024, the Audiovisual Council levied fines against Gagauzian regional television channels GRT and ATV for spreading disinformation and inciting hatred.[87]

In July 2024, Parliament approved in final reading amendments to the Law on Preventing and Combating Cybercrime,[88] which, according to the authors, aims to implement the Convention on Cybercrime ratified in 2009. After November 15, 2024, when the updated law[89] enters into force, the heads of the cybercrime units of the Ministry of Interior and SIS will be able to issue orders to restrict access to a web page or to remove online content from the source in accordance with the criteria specified in the new article 4/2 of the Law on Preventing and Combating Cybercrime. The Ministry of Interior has the right to order the immediate preservation of computer data or data on information flows by the service provider, where there is a risk of destruction or damage, in case of requests from competent authorities of other states.

The law obliges the authorities to observe certain principles including proportionality, application of the least stringent technical measure to restrict access, informing about the reasons for restricting access and the appeals procedure, periodic review of the need to further restrict access to a certain web page, respecting the right of service providers to apply other measures on their own initiative to prevent abuse of their services. The relevant order will be published on the official webpage of the competent authority. Suspension of access to online content may be ordered for a period of 30 days with the possibility of extension, but not more than 90 days. An order to terminate access to a web page or to remove online content from the source may be appealed in court by the service provider, including the provider of online content hosting services, and/or the owner of the web page (online content provider). The filing of an appeal does not suspend the validity of the relevant order.

The complaint shall be considered by the court within fifteen days.

Various websites hosting user-generated content may be subject to applicable laws, including the Law on Countering Extremist Activity.[90] The law prohibits the distribution of extremist materials within Moldova. After receiving a notification from the Prosecutor General, a court determines whether content contains signs of extremism, which include symbols of extremist organizations or incite violence to undermine national security and carry out terrorism. If measures to eliminate violations are not taken within the prescribed period, or new facts are revealed within one year, a court can temporarily terminate or suspend a media organization's activities.

IV. ONLINE MEDIA AND THE INFORMATION ENVIRONMENT

IV.1 Self-Censorship

The Republic of Moldova dropped in the 2024 Global Expression Report ranking for freedom of expression to 41 out of 161, with 77 points. The report assesses indicators such as freedom of the internet from censorship, freedom of government regulation of citizens' behavior on social media, freedom from persecution for expressing one's position on social media, freedom from government censorship. Freedom of expression in Moldova was categorized as "less restricted" rather than "open," as it was a year ago. In 2024, Moldova became the only state previously "free" to record a deterioration in the situation.[91]

According to Reporters Without Borders' 2024 Press Freedom Index, the Republic of Moldova dropped its position from 28 to 31.[92] The report noted that oligarchs and political leaders strongly influence their editorial stances. While some media risk tackling issues that are embarrassing for the authorities, many limit themselves to following the political agenda of the party to which they are affiliated.

According to interviews conducted for this report, individual online journalists engage in some self-censorship, though it is not widespread. In some cases, online journalists are wary of criticizing the owners of their companies or the people on whom they depend for funding. There has been a recent trend toward increased self-censorship, partly due to the chilling effect of increased website blocking and audiovisual media restrictions.

Cornelia Cozonac, president of the Center for Investigative Journalism of Moldova (CIJM), believes that the closure of TV channels and online media has led to a decrease in the level of criticism of the authorities, the emergence of taboo topics against the government and, in general, the development of self-censorship in the media, which continue to operate because they fear that they will be subject to similar measures. In her opinion, this carries a certain danger, as the example of some post-Soviet countries shows, where journalists said they were free as long as they did not criticize the government, the top leadership of the country. She said: "There are also known cases when the level of self-censorship increases in the context of prosecution of journalists after investigations, especially for young journalists who lack sufficient experience and the necessary legal support."

Ivan Sveatchenko, journalist, author, and host of the Nonfiction Project on YouTube also said,

> Over the past four years, Russian propaganda has bought up Moldovan oligarchs and organized a kind of united front of struggle—a struggle against Moldova's European integration, against citizens and their future, against common sense. That is why I feel some influence of self-censorship. I don't want to join the huge army of trolls and bots, pseudo-politicians and hired civil activists who scold the authorities 24 hours a day. Sometimes the criticism is fair, but in the vast majority of cases it is not criticism, but an elaborate PR strategy of the Kremlin. My self-censorship does not mean limiting freedom of speech and freedom of the press. This is journalistic, political, and civic hygiene.

Viorica Zaharia, journalist and president of the Press Council of the Republic of Moldova, notes that in the last two years, journalists, especially TV journalists, have started to complain more often about self-censorship due to sanctions. However, in her opinion, sanctions for violating the legislation have made journalists more responsible and cautious:

> Personally, I don't notice any manifestations of self-censorship. Every time journalists ask the representatives of the authorities uncomfortable questions that even make them angry. I also see that in investigative media there are topics related to representatives of the authorities, such as Dorin Recean,[93] Mihai Popșoi,[94] Natalia Gavrilița.[95] There were also cases where the EU, which is a donor, appeared in a bad light in investigations.[96,97] Also in one case, the CU SENS team investigated how the money provided as compensation by People in Need was used by the Government, and People in Need was their partner in the project.[98]

On the eve of the presidential elections and the constitutional referendum in the fall of 2024, some media outlets refused to cover the election campaign, which experts explain by the tightening of legislation on disinformation and political control

of several media resources, which would be forced to present other points of view that do not coincide with the interests of media owners.[99]

The online media landscape self-censors more extensively during states of emergency, when the authorities require restraint from discussing certain topics. In March 2020, the audiovisual regulator obliged all television channels and radio stations to comply with prohibitive measures and refrain from expressing their own opinions when discussing the pandemic, using only the official position of the authorities. Amid widespread criticism, the measure was lifted a few days later.[100] Under the instructions of the Commission for Emergency Situations, the intelligence service issued a public warning in 2022 to online media outlets to refrain from publishing or distributing "fake news" and "biased information" that incite hatred, public disorder, war, justify military aggression in Ukraine, provoke conflict, or glorify military aggression.[101]

IV.2 Disinformation and the Manipulation of the Online Environment

Online platforms, including social networks, are used by various political forces to disseminate disinformation and manipulate public opinion, especially during election campaigns and political crises. Trolls, employed by various entities, influence online discussions. A significant amount of misinformation is spread online through an ecosystem that includes social media accounts, especially Facebook pages, as well as Telegram, TikTok and YouTube channels.

President Maia Sandu has been repeatedly targeted by disinformation campaigns, including AI generated deepfakes.[102] Additionally, a February 2024 report revealed that individuals enlisted celebrities to create a series of videos denigrating President Sandu through the Cameo app, which allows anyone to pay a popular person to record a personalized video.[103] The videos were widely shared on TikTok, Facebook and Telegram, receiving hundreds of thousands of views.[104]

In 2023, the *Stopfals.md* portal reportedly debunked more than 150 cases of information manipulation in the public space, which primarily concerned pro-Kremlin propaganda targeting the social, security, and defense sectors, as well as Moldova's process of European integration.[105]

Moldova is also targeted by networks of inauthentic accounts linked to oligarchs. In the first quarter of 2024, Meta removed more than 1,326 Facebook accounts, 80 pages, a group and an Instagram account that targeted users from Moldova and Madagascar under the company's coordinated inauthentic behavior policy.[106] The people behind this operation used fake accounts and disseminated information about current events in Moldova and criticized the current government. About $42,000 was spent promoting Facebook posts. The Watchdog Association, which analyzed thousands of sponsored posts against EU integration, as well as hundreds of anonymous pages, concluded that fugitive oligarchs Ilan Șor and Veaceslav Platon are the main financiers of these disinformation campaigns on Facebook.[107]

In June 2024, the official accounts of several political actors were blocked by Meta due to their classification as "dangerous organizations and individuals." The Information and Security Service reported that since 2023, it had informed Meta about the use of accounts to spread disinformation and propaganda in the Kremlin's interests.[108] A lawyer for some of the actors whose accounts were blocked announced a lawsuit against Meta.[109]

In April 2024, the government was targeted by a network of inauthentic Facebook accounts.[110] They criticized government officials and linked to social networks posts by fugitive oligarch Ilan Șor.[111] In early 2023, reporters identified a similar network of 100 accounts that supported Șor.[112]

At the beginning of 2019, Meta removed a network of 168 inauthentic Facebook accounts, 28 pages and eight Instagram accounts that were allegedly linked to the government.[113] The operators of the network spent $20,000 on Facebook and Instagram advertisements. The government said in a public statement that it does not verify staff activity on private social media accounts and will request more information from Facebook.[114]

Moldova is also targeted by disinformation originating from Russia, particularly as it relates to national security issues.[115,116] According to the SIS, Moldova is exposed to hybrid attacks including disinformation on an unprecedented scale.[117,118] The

Institute for the Study of War, a United States-based think tank, expect that Russia is likely to intensify information operations in Moldova in the second half of 2024.[119] In 2020, Meta removed networks of accounts, groups and pages for engaging in coordinated inauthentic behavior. These networks targeted several countries including Moldova and were operated from Russia and the Luhansk region of Ukraine.[120,121]

The Moldovan government has taken measures aimed at countering disinformation, though some have been criticized for restricting fundamental rights, including freedom of speech. In December 2023, Parliament adopted the National Security Strategy and in the same month, it approved the Concept of Strategic Communication and Countering Disinformation, Information Manipulation and Foreign Intervention for 2024-2028.[122,123] The Concept gives the Center for Strategic Communications and Countering Disinformation, a new institution headed by former Minister of Internal Affairs Ana Revenco, the authority to take measures against disinformation, including by alerting law enforcement to content that allegedly violates international law.[124] The Center for Strategic Communications and Countering Disinformation also played a role in drafting the concept. The parliamentary opposition regarded the new regulatory framework as "a powerful weapon of coercion, control and restriction of freedom of speech."[125]

In March 2023, Prime Minister Dorin Recean announced an open letter published to major IT companies calling for action "against disinformation and manipulation on social media, including campaigns that undermine peace and stability throughout Europe."[126] The initiative was led by the Republic of Moldova and was supported by the Czech Republic, Estonia, Latvia, Lithuania, Poland, Slovakia and Ukraine. The letter calls on major companies to take concrete steps against the use of their platforms to spread propaganda or disinformation and to promote malicious causes.

IV.3 Online Media Environment and Market

Though online media outlets are not required to formally register with the government, they suffer from a lack of advertising and control by oligarchs. The 2023 State of the Press Index highlights that outlets linked to powerful oligarchs are better resourced than their competitors.[127] Additionally, Reporters Without Borders notes that the country is facing economic difficulties caused by the collapse of the advertising market following the Kremlin's full-scale invasion of Ukraine.[128] According to experts, Moldovan outlets struggle to diversify funding through subscriptions, advertising, private donations, or reader donations.

According to the 2023 Vibrant Information Barometer (VIBE),[129] advertising placements remain politicized, and Moldova's very modest advertising market is concentrated in the capital, Chișinău. Advertising revenues for all traditional media decreased significantly as advertisers shifted their focus to social networks.

At the national level, online media are not required to register with the authorities, unlike "traditional" media. However, in February 2024, officials in Gagauzia introduced a bill that would require regional media outlets to apply for a permit (the so-called Izin), a move that was widely criticized by civil society as an attempt to impede journalists through arbitrary mechanisms and demanded the bill's immediate withdrawal.[130,131]

Questions have also been raised about the independence of the national public television and radio broadcasting company. In March 2024, the Council of Europe's Committee of Ministers called on Moldovan authorities to immediately remove the public broadcaster Teleradio-Moldova (TRM) from parliamentary control.[132] The Council requested that Moldova "urgently" review its audiovisual legislation, which returned the control of public media to Parliament in 2021, leading to interference in the mechanisms guaranteeing the independence of the Audiovisual Council and the TRM.

IV.4 Online Diversity and Reliability

Research demonstrates that the internet, and in particular social networking platforms and messaging applications, have become an important source of alternative information for individuals, who can access a wide range of online content, mainly in Romanian, Russian (the second-most commonly used language) and to a certain extent English. In general, according

to IREX's 2023 Vibrant Information Barometer VIBE report,[133] people have access to content in the language they speak or prefer as Moldovan media offer news and information sources in Romanian and Russian. Several publications are available for linguistic minorities such as the Roma and Gagauz people. Ukrainian, the first language of Moldova's largest ethnic minority, is underrepresented, though this is largely related to audience demand; Gagauz and Ukrainians in Moldova consume content in Russian more often than in their native languages.

Minorities and vulnerable groups are represented online through few web resources. LGBTQI+ activists use online tools to coordinate, share information, and protest against discrimination in public space (*see "Online Organizing" below*).

The proportion of people who consume news online is steadily increasing. According to the E-Governance Agency's annual survey for 2023, the internet has become the main source of information, overtaking television, and the November 2022 Public Opinion Barometer, noted that 45 percent of citizens use the internet is their main source of information.[134,135] These observations are largely reflected in June 2024 survey data from the International Republican Institute (IRI). When asked which source of political news and information is most trusted, respondents said television (71%), social media (61%), and online news sites (60%). However, in Chișinău, residents trusted news sites (77%) over social media (69%) and television (64%). Moldovan citizens prefer Facebook (65%), YouTube (50%), and TikTok (28%) as a source of information, which is largely upheld in Chișinău, where users prefer Facebook (69%), YouTube (63%), Instagram (38%), Telegram (38%), Viber (30%).[136] News pages and social media (52%) outperform dedicated government websites (21.6%). However, the 2023 VIBE report notes that the quality of online journalism is often poor and does not provide true diversity.[137] Online news outlets' pursuit of clickbait, desire to provide "exclusive materials," and content recycling contribute to the lack of reliability in the information space.[138]

IV.5 Online Organizing

There are few restrictions on online gatherings, and digital mobilization is a common feature of political life in Moldova.

Activists, civil society groups and opposition political forces regularly use social media to communicate with their supporters, publish calls to action, and mobilize citizens. Online platforms, especially Facebook, Telegram and TikTok, have been used effectively to organize protests and mobilize around a range of issues. In addition, ethnic and linguistic minorities have actively campaigned online and offline to advocate for various changes in government policies.

In recent years, parliamentary and extra-parliamentary opposition, represented mainly by political forces supported by the fugitive oligarch Ilan Șor, regularly used social media channels to organize protests calling for the resignation of the President and Government.[139,140]

In October 2022, the Commission for Emergency Situations (CES) banned protests on weekdays.[141] The ban prohibited people from blocking the movement of vehicles or complicating access to public institutions and evacuation routes from them. Some protests were marked by the arrests of protesters and organizers, and footage of these arrests was then published online. The Ombudsman condemned the authorities' actions against the protesters.[142]

Online mobilization has played an important role in organizing demonstrations in support of Moldova's integration into the EU, including the European Moldova National Assembly, held on May 21, 2023, at the Great National Assembly Square in Chișinău, whose stated purpose was to unite citizens of the Republic of Moldova who want a democratic European future. President Maia Sandu posted a video on Facebook inviting citizens to the event.[143] According to police, more than 75,000 people attended the rally.[144]

V. LEGAL FRAMEWORK FOR INDIVIDUAL RIGHTS ONLINE

V.1 Constitutional Protections for Individuals Rights Online

Moldova's constitution guarantees freedom of expression (Article 32), the right to access information relating to public affairs, and the prohibition of media censorship (Article 34).[145]

The 2010 Law on Freedom of Expression aims to guarantee the exercise of the right to freedom of expression, as well as the balance between ensuring this right and protecting the dignity and privacy of a person and their privacy.[146] Moldova's national legislation does not clearly define who can be considered a journalist and does not indicate whether these rights extend to online journalists and digital influencers.

Although Moldova's constitution and laws nominally protect digital rights, the judiciary lacks the independence to consistently and fairly enforce these protections for online freedom of expression. According to a February 2024 national survey conducted by the Institute for European Policy and Reform (IEPR) and Magenta Consulting, only 22 percent of respondents trust Moldova's judicial system.[147] Judicial independence in Moldova remains an issue due to corruption and selective justice, where the law is applied unequally due to political motivations.[148]

Moldovan media and journalists continue to face obstacles accessing information. In June 2023, Ialoveni Online news reporters attempted to obtain copies of draft decisions of Costesti's village council, but Costesti mayor Vasile Borta instructed the council not to provide the documents.[149] Nine Moldovan civil society groups released a statement condemning Borta and imploring local officials to follow the law requiring draft decisions to be published in advance of meetings. Public officials have also invoked the Law on Personal Data Protection, State and Commercial Secrets to avoid providing information to outlets and journalists not deemed as part of the "official" media.[150] Media representatives and civil society organizations have repeatedly criticized the limitations on access to data on the national courts' information portal.

Moldova's Law on Access to Information of Public Interest entered into force in January 2024, introducing multiple changes to how the public can access information managed by public institutions. The law incorporated proposals from civil society and media organizations, including extending the list of groups obliged to provide information of public interest and shortening the deadline for providing information to media representatives.[151] The new law aims to harmonize national legislation with the standards of the Tromsø Convention, or the Council of Europe Convention on Access to Official Documents, which was ratified by Moldova in 2013.[152]

As part of measures taken by the Commission for Emergency Situations (CES), media and online resources faced a number of restrictions during and after the states of emergency for COVID-19 (2020-2022) and Russia's full-scale war against Ukraine (2022-2023) (*see the corresponding section*).

V.2 Laws Criminalizing Online Speech and Activity

There are several laws that assign penalties for online activities.

Although the Moldovan government nominally decriminalized defamation in 2004 per Council of Europe recommendations, individuals can still be found guilty of posting defamatory statements online and receive civil and criminal punishments.[153] The Law on Freedom of Expression allows for injured parties to receive financial compensation for defamation.[154] Article 70 of the Contravention Code provides punishment for slander with community service and fines increasing in severity if the crime involves an accusation for a penal offense or is motivated by bias, though they do not include prison time.[155] The Contravention Code also stipulates fines and restrictions on certain activities for insults, including written expressions and images (Article 69) and actions inciting discrimination (Article 70/1). Likewise, violators can be fined or required to perform community service, but not imprisoned. The law also includes penalties for harassment (Article 70/2) the failure to comply with personal data processing and use laws (Article 74/1), violations of copyright (Article 96), and the dissemination of

publicly available information that negatively impacts minors, including prostitution, pedophilia, and pornography (Article 90/1).[156]

The Criminal Code prohibits the public dissemination of certain information. The code penalizes propaganda of genocide or crimes against humanity (Article 135/2) with between 1 and 5 years in prison, the propaganda of war (Article 140) with up to 6 years in prison, and the incitement to or public justification of terrorism (Article 279/2) with up to 5 years in prison. The Code also penalizes calls for the overthrow or violent change of Moldova's constitutional system (Article 341) with up to three years in prison for individuals, and the incitement of violent actions based on prejudice (Article 346) with up to three years in prison.[157] Additionally, Part 2 of Article 176 provides for fines ranging from 750 to 1,200 conventional units, community service, imprisonment for up to two years, or the inability to hold "certain positions" for encouraging or supporting actions that violate the equality of citizens and support discriminatory behavior through mass media.[158]

Moldova's Law on Countering Extremist Activities assigns penalties for extremist activities aiming to undermine national security and provoke racial, national or religious hatred.[159] The law also contains prohibitions on the distribution of paraphernalia or symbols used in the context of acts of military aggression, war crimes or crimes against humanity, as well as the propaganda and glorification of these actions. If the media violates these prohibitions, it receives a warning from the Prosecutor General that can be contested in a court. For subsequent violations committed within twelve months after receiving the warning, the court can suspend the activities of the media for up to one year.

In May 2024, Moldova's parliament adopted amendments to Article 337 of the Criminal Code which updates the definition of high treason.[160] The bill's initial explanatory note stipulated that disinformation affecting the independence, sovereignty and security of Moldova will be punished criminally and considered an "additional form of high treason." Rights experts and civil society groups expressed concern about the legislation, arguing that it imposes disproportionate restrictions on speech and jeopardizes constitutional guarantees of freedom of expression online, and could be used to stifle political dissent in the name of countering foreign interference.[161] After receiving widespread criticism, Parliament amended the explanatory note, though the text of the law remained unchanged. In the final version the law's explanatory note contains a reference to Article 4 of the Law on State Security, which includes hostile propaganda and disinformation campaigns that can harm the constitutional order as threats to state security.[162]

VI. ARRESTS, HARASSMENT, AND VIOLENCE IN RETALIATION FOR ONLINE ACTIVITY

VI.1 Legal Penalties for Online Speech and Activities

Moldova's constitution and laws prohibit arbitrary arrest and detention and provide for the right of any person to challenge the lawfulness of their arrest or detention in court. According to the U.S. Department of State, Moldova's government generally observes these protections, and individuals are rarely detained for online activities protected under international human rights standards.[163] There were no reports of arbitrary arrests during 2023, and Reporters Without Borders notes that no journalists have been detained in Moldova, outside of Transnistria, since 2019.[164]

Moldovan citizens are generally free to express their opinions online without fear of legal penalties, but several recent prosecutions for online activity have raised concerns. Non-governmental media organizations have reported several cases of libel sanctions against journalists. Additionally, since the Kremlin's full-scale invasion of Ukraine, the Prosecutor's Office for Combating Organized Crime and Special Cases (PCCOCS) has launched criminal investigations into war propaganda and actions aimed at stoking national, ethnic, racial and religious division.[165] In one such case, the Prosecutor's Office, the SIS, and the Internal Security and Anti-Corruption Service announced in March 2022 that they had opened an investigation into the actions of individuals "disseminating biased and fabricated information to the public" regarding the war in Ukraine.[166]

Moldovan authorities also pressure journalists through administrative cases. To illustrate, in January 2022, the Police Inspectorate of Chișinău's Buiucani sector opened an administrative libel case against *Jurnal TV*, a Moldovan news channel, after it aired an investigation about a former police officer. The Chișinău Court fined the channel's Managing Director, Val Butnaru, and banned Butnaru from holding leadership positions in the media for six months. Civil society groups criticized the ruling as disproportionate, considering it a dangerous precedent for press freedom.[167] In February 2023, the Chișinău Court of Appeal overturned the decision, and the case was sent for retrial with a different panel of judges.[168]

In another instance, in February 2024, the SIS and PCCOCS revealed they had investigated the activities of a Telegram group that posted fascist and anti-Semitic messages denying the Holocaust throughout 2023.[169] The Telegram channel was deleted after criminal proceedings began and the PCCOCS had summoned the suspects. In its press release concerning the case, the SIS stated that it is observing a trend of "irresponsible" online behavior with a risk of "undermining the peaceful coexistence of the multinational and multilingual people of the Republic of Moldova."[170]

Digital influencers whose content elicits negative reactions from the public also garner law enforcement attention. In May 2024, TikTok user Ecaterina Gogolev posted erotic photos of herself posing in a Chișinău cemetery. The pictures sparked outrage among several people, who then contacted law enforcement. The police summoned Gogolev for questioning under Article 54 of the Criminal Code, which prohibits the desecration of graves and revered objects.[171] In another case, three young people were detained after they tried to sleep in a coffin in a Chișinău cemetery during a TikTok livestream. According to police, they were fined for hooliganism and then released.[172] GenderDoc-M Information Center also reports that a precedent was set in Moldova when, after the Chișinău Pride March 2024, the police fined two TikTokers who published hate speech videos against the LGBTQI+ community—one charge for hooliganism, the other for inciting hatred.[173]

VI.2 Online Harassment and Violence in Retaliation for Online Activities

Moldovan internet users sometimes face physical attacks and online harassment in retaliation for their online activities. Journalists in particular experience online harassment, threats, and cyberattacks (*see "Cybersecurity"*). According to Reporters Without Borders, journalists face intimidation from politicians and their supporters, especially during pre-election periods and election campaigns.[174]

A study by the Association of Independent Press of Moldova (API), recorded 56 cases of attacks or threats against employees

of both traditional and online publications in 2022.[175] In more than 60 percent of these cases, the perpetrators of attacks on media workers were representatives and/or supporters of opposition political organizations. In thirteen cases, regional authorities and law enforcement officers did not agree with investigative publications directed against them. Eight verbal attacks were also reported on social media, with anonymous individuals intimidating and sending death threats and violence against journalists in seemingly coordinated campaigns of intimidation and defamation. Thirty-nine out of the fifty-six cases were non-physical threats, including bullying and defamation, and/or cyberattacks. These methods have remained the primary means of pressuring media workers in Moldova since 2017.[176]

API identified similar trends in 2023: 43 cases of attacks/threats against media workers were recorded, which is 13 attacks less than in the previous year.[177] The vast majority of attacks on media workers in 2023 were non-physical and/or cyber-attacks and threats (totaling 33, or 77%), including: intimidation, pressure, threats of violence and death, defamation, cyber and DDoS attacks on media platforms, etc. Some of the attacks (16 cases or more than 37% of the total) came from unknown persons, mainly online threats from fake profiles and accounts. It should be noted that some attacks and threats are not publicly reported or covered by the media, as many journalists consider cyberattacks and non-physical threats an inevitable part of their daily work and therefore do not report them.[178]

Online hate speech against the LGBTQI + community remains common, including from public figures. According to a 2023 report by the US State Department, LGBTQI+ individuals frequently face insults on social media by both public and religious authorities, as well as private individuals.[179] Moldova's Equality Council, which examines discrimination complaints, heard several cases concerning public officials discriminating against LGBTQI + individuals in 2023.[180] These cases included discriminatory online statements made by a Chișinău City Hall department head,[181] a political party leader,[182] and the former prime minister.[183] In most cases, the Council ordered the removal of discriminatory posts from social networks and for the individuals to refrain from making discriminatory statements.

Discriminatory statements based on ethnicity or religion are fairly common online.[184] In August 2023, the Equality Council determined that moderators of the online television channel AVA TV discriminated against Russian citizens and some Moldovan residents on the basis of nationality, religion and political affiliation of Russian citizens by spreading misinformation and making offensive statements.[185] The Council recommended AVA TV either mute the specified discriminatory phrases or remove the relevant videos from their online platforms. The Council also urged the editor-in-chief of AVA TV's website to update its policies to include a ban on both inciting discrimination and supporting discriminatory statements and behavior.[186]

VII. SURVEILLANCE, DATA SHARING, AND CYBERSECURITY

VII.1 Restrictions on Encryption and Anonymity

There is no legal requirement for website owners, bloggers, or users to register with Moldova's government.[187] In April 2022, Moldova's parliament considered amendments to the Law on the Intelligence and Security Service that aimed to place new restrictions on electronic communications.[188] The amendments would have required webpage owners to display their contact information—including their first and last names, state ID numbers, phone numbers, email addresses and location—or have their page blocked. The amendments were ultimately not adopted due to difficulties in implementation and concerns for rights.

Anonymous communication and encryption tools are not prohibited or restricted in Moldova. As of March 2023, Moldova does not have any SIM-card registration requirements.[189]

VII.2 State Surveillance and Legal Protections for Privacy

Moldova's legislation provides for the protection of privacy from unlawful and unjustified intrusion and the arbitrary surveillance of citizens. Moldova's constitution guarantees the protection of privacy (Article 28), as well as the privacy of correspondence, telephone conversations and other legal types of communication (Part 1 of Article 30).[190] Under Article 54, privacy protections may be restricted in cases concerning national security, the country's economic well-being, public order and the prevention of crime.

Despite constitutional guarantees, the Moldovan government's surveillance of online activities often violates users' right to privacy. Recent reform, which was accompanied by criticism from civil society, expanded the internet surveillance powers of the SIS (*see related section 3*). A special technical unit of the SIS intercepts electronic communications, which are transmitted to units of other agencies.[191] By law, the SIS should only listen to conversations if it is expressly ordered by the court or the prosecutor in the case of obvious crimes and urgent circumstances.

Internet and mobile service providers are required to install SIS-compatible equipment in their ICT infrastructure to provide seamless access to internet traffic and subscriber information (*see the following section*). Evidence of surveillance abuse by the government has been repeatedly uncovered in recent years. In multiple cases, Moldovan authorities illegally recorded conversations and correspondence between civil society activists and political figures, some of which were published online.

In October 2021, the Anti-Corruption Prosecutor's Office charged five employees of the Fifth Directorate of the National Investigation Inspectorate, including the former head of the directorate, for illegally wiretapping and surveilling opposition representatives, civil activists, and journalists.[192] The ongoing criminal case is based on a 2019 investigation by Rise Moldova, which revealed that law enforcement agencies wiretapped and monitored more than 50 individuals as part of a surveillance operation between 2017 and 2019.[193] Moldova's current president, Maia Sandu was a target.[194] Some victims claimed police used wiretapping to open criminal cases against them.

In November 2021, non-governmental organizations signed a declaration calling on the Ministry of Internal Affairs to investigate Chiril Motpan, then-chairman of the parliamentary commission on national security, who claimed at a press briefing that Moldova's Democratic Party ordered security forces to wiretap about a hundred people, including journalists, public figures and politicians.[195] Under the Democratic Party's rule, authorities had carried out surveillance on activists, opposition leaders, and European experts. For instance, Irmantas Mikelionis, a consultant working on an EU-funded project to strengthen Moldova's law enforcement capabilities, claimed he had received an envelope with his photographs and anonymous letter detailing his surveillance. The Anti-Corruption Prosecutor's Office began a criminal investigation into this case in 2019, but never completed it.[196]

In recent years, opposition politicians and civil society representatives have also alleged surveillance by the SIS. In June

2023, Fadei Nagacevschi, an opposition politician and former minister of justice, claimed on Facebook that he knew of a list featuring 29 people against whom the SIS had been instructed to surveil and wiretap.[197] In September 2021, journalist Natalia Morari posted that SIS officers blackmailed her, threatening to publicly reveal information about her personal life.[198] In response, the SIS invited Morari to present evidence of her alleged blackmailing, and also recommended that she contact the Prosecutor General's Office to initiate a criminal case.[199] However, the situation has not developed further.

While presenting a report in February 2021, then-Prosecutor General Alexander Stoianoglo said that government and law enforcement agencies continue to surveil business representatives.[200] Stoianoglo had previously revealed serious violations in surveillance policy, including the wiretapping of citizens for 8–12 months, though the law only allows for six.[201]

Experts also claim that private security organizations affiliated with Moldovan oligarchs engage in surveillance activities. After the country's change of government in June 2019, the private security company of the fugitive oligarch and former leader of Democratic Party Vladimir Plahotniuc's private security company, Argus-S, continued to conduct illegal surveillance and wiretapping of phones with high-performance equipment.[202] Over the years, Argus-S has won tenders for security services for several government institutions, including the Public Services Agency and the national telecommunications operator, Moldtelecom.[203]

Ilan Șor, an oligarch sentenced to 15 years in prison and currently hiding abroad, has also faced allegations of ordering illegal surveillance. In May 2023, the Buiucani Court convicted six individuals for violating privacy and spying on two prosecutors of the Anti-Corruption Prosecutor's Office on the eve of the 2020 presidential elections.[204] The defendants had surveilled activists and politicians on behalf of Șor.

Russian intelligence services are also active in Moldova's online environment. In October 2020, the Dossier Center and Rise Moldova published an investigation detailing the existence of watchlists that include online accounts of politicians from Chișinău and Gagauzia and contain "compromising materials and intimate details."[205] Russian intelligence services also monitor publications by journalists, bloggers, and popular Telegram channels, posts on social networks of individual citizens, and the activities of foreign-funded, non-governmental organizations in Moldova. One such organization includes GenderDoc-M, which protects the rights of LGBTQI+ communities.[206]

VII.3 Data Protection, Retention, and Access

Moldova adopted its Law on Personal Data Protection in July 2011. Under the law, the government formed the National Center for the Protection of Personal Data, a special supervisory body empowered to register data privacy violations, conduct inspections, and impose fines.[207] Moldova enforces the Council of Europe's Convention for the Protection of Individuals with regard to Automatic Processing of Personal Data and other international agreements to which Moldova is a party. On July 25, 2024, Parliament approved the new Law on Personal Data Protection [208] to harmonize its national legislation with the EU General Data Protection Regulation (GDPR).[209] The law will enter into force on August 24, 2026.

Citizens, officials and legal entities may be held liable under Contravention Code Article 74/1 for the processing of personal data in violation of data protection laws. A separate provision (Article 74/3) establishes liability for failure to comply with the regulations of the National Center for the Protection of Personal Data, which prescribes periods for the restoration of personal data rights, including the blocking, suspension or termination of the processing of personal data.

Moldovan legislation does not require service providers to monitor traffic or content. Public access points are not required to identify, track or store customers' personal data and information. However, according to Law on Electronic Communications, providers must facilitate the interception of electronic communications, in cases concerning national security, public order, and criminal prosecution, by law enforcement with an order from a judge.[210] Service providers are required to provide the SIS with free and prompt access to all equipment interfaces, their electronic communications networks, and the conditions necessary to connect special equipment to listen to user communications within court authorization.

The Law on Preventing and Combating Cybercrime obliges service providers to maintain records of service users and

provide competent authorities with user data based on legal requests.[211] Providers are required to monitor, supervise and store data to identify service providers, service users and channels through which messages are transmitted for 180 days. They must also comply with authorities' requests to immediately store data when there is a risk of destruction or damage for no more than 120 days. Providers are also obliged to ensure that computer data contained in network protocol packets is decrypted and that the data is retained for 90 days.

VII.4 Cybersecurity

The 2023 Digital Quality of Life Index notes that cyberattacks, which target news outlets, government websites, civil society groups, and other entities in Moldova, are becoming more frequent and sophisticated.[212] The Kremlin's full-scale invasion of Ukraine also led to an increase in cyberattacks.[213] Within a year after the start of the full-scale invasion of Ukraine, attacks on Moldova's digital infrastructure increased by a roughly 33 percent, a trend that continued in the subsequent period.[214]

In this context, cybersecurity has become a subject of strategic importance for the Republic of Moldova. According to the Information Technology and Cybersecurity Service (STISC), one of the largest cyberattacks in the country's history occurred in August 2022, when 80 government information systems, platforms, and public portals were targeted.[215] In the subsequent period, cyberattacks targeted the platforms of the Chișinău International Airport, government agencies, law enforcement agencies, the Central Election Commission, state-owned enterprises, as well as non-governmental, financial and commercial organizations.[216] The government communications system was the target of a large-scale cyberattack during the European Political Community Summit in Bulboaca in June 2023.[217] STISC representatives say they repel about 40 attacks daily, many of which are aimed at government infrastructure and originate from Russia.[218]

In November 2022, Moldova-Leaks published a series of private Telegram conversations attributed to Moldovan political and public figures. The official Telegram accounts of President Maia Sandu and Deputy Prime Minister Andrei Spinu were hacked, where the same message appeared with a link to the Moldova-Leaks website and an offer to "find out the truth about the lawlessness in the Prosecutor's Office and the Ministry of Justice."[219] For three weeks, the anonymous site published Telegram correspondences between public officials, and investigations by news outlets have shown the published information is at least partially true.[220] The Moldova-Leaks has become the basis for a number of legal proceedings.[221] Currently, the Prosecutor's Office for Combating Organized Crime and Special Cases (PCCOCS), which is investigating a criminal case of illegal interception of computer data, is waiting for its appeals to international jurisdictions regarding the collection of information about the actions of the authors of this attack.

According to civil society organizations working on media issues, the press in Moldova routinely experiences hacking of social media accounts, Distributed Denial of Service (DDoS) attacks, and phishing attacks.[222] As a result, some sources remain unavailable for a significant period of time. For example, the Center of Investigative Journalism (CIJM)'s portals, *Anticoruptie* and *Investigatii*, remained offline for approximately six days after they were hacked in May 2024.[223]

In March 2023, Parliament adopted the Law on Cybersecurity,[224] which will come into force in January 2025. The document establishes the Agency for Cyber Security under the Ministry of Economic Development and Digitalization, which will be responsible for managing cybersecurity crises throughout the country.[225] The Agency will host a cyber incident response team and a single national contact center. The law also created The National Institute for Innovation in Cybersecurity, Cybercor, which will conduct research and launch cyber educational programs.[226]

In June 2024, STISC announced the launch of the government cyber event disclosure platform (cyberevent.gov.md), which aims to improve the ability to monitor, analyze, and respond to national-level cybersecurity incidents.[227]

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